सीमाशुल्क आयुक्त (आयात) का कार्यालय
OFFICE OF THE COMMISSIONER OF CUSTOMS (IMPORT),
मुंबई ज़ोन -III, जन संपर्क अनुभाग, हवाई माल संकुल
MUMBAI ZONE – III, PRO CELL, AIR CARGO COMPLEX,
सहार, अंधेरी (पूर्व), मुंबई- ४०० ०९९
SAHAR, ANDHERI (EAST), MUMBAI – 400 099
e-mail- proaccsahar@gmail.com Phone-022-22816696

F.No. S/3-MISC-PRO-516/2013 ACC(I) Part 5

Date: 16.01.2019

दिनांक 28.12.2018 को सम्पन्न स्थायी व्यापार सुविधा कमिटी की बैठक का कार्यवृत

MINUTES OF THE PERMANENT TRADE FACILITATION COMMITTEE MEETING HELD ON 28.12.2018

स्थायी व्यापार सुविधा कमिटी की मासिक बैठक दिनांक 28.12.2018 को 11.30 बजे हुई। जिसकी अध्यक्षता श्री एस. अनंत कृष्णन, आयुक्त (निर्यात), द्वारा की गयी।

The monthly meeting of the Permanent Trade Facilitation Committee (PTFC) was held on 28.12.2018 at 10.45 A.M. was presided over by Shri Vinayak Azaad, Commissioner of Customs (Import) and Shri S. Anantha Krishsnan, Commissioner of Customs(Export), ACC, Sahar.

निम्नलिखित अधिकारियों व हितधारी संगठनों के प्रतिनिधि ने इस बैठक में भाग लिया।

Following officers and representatives from the stakeholder organizations participated in the meeting:

नाम व पद/ Name & designation	संगठन/Organization
श्री सुखजीत कुमार/Shri Sukhjit Kumar, अपर आयुक्त (आयात)/Addl. Commissioner (Import)	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी
श्री तपन कुमार Shri Tapan Kumar, संयुक्त आयुक्त (निर्यात)/Jt. Commissioner (Export)	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी
श्री अरुण चौधरी/Shri Arun Choudhary उप. आयुक्त (आयात)Dy. Commissioner (Import)	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी
श्री बी. के. मोहन्ती/ Shri B. K. Mohanty सहायक आयुक्त, (जनरल)/Asst. Commissioner(General)	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी
श्री बी. विनायक/ Shri B. Vinayak सहायक आयुक्त (आयात)/Asstt. Commissioner(Import)	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी
श्री विनोद नौटियाल/ Shri Vinod Nautiyal सहायक आयुक्त (आयात)/Asstt. Commissioner(Import)	Customs, ACC, Andheri सीमाशुल्क, हवाई माल संकुल, अंधेरी

Name of attendees from stakeholder organizations	संगठन/Organization
Shri Ashok Satavase, Shri Manoj Singh, Shri Nandan Kanchan, Mayilvanan T.	MIAL (Custodian)
Shri Ketan Desai, Shri Dushyant Mulani, Shri Sorab P. Engineer, Shri Paresh	BCBA (formerly known as BCHAA)
Ms. Vaishali Kulkarni	COSIA
Ms. Jyotsna Patil	JET Airways
Ms Chitaly Mehta, Shri Bala Ayer	ACAAI
Shri V. A. Ambre, Shri M. A. Paikar, Sangeeta B. A. Dev, Jolly John, R. J. Mane	Air India & AIATSL
Shri Abhishek Chawla	Asst. Drug Controller
Ms. Jyotsna Patil	JET Airways
Shri Sanjay Patankar	Emirates Cargo
Shri Deep Arora	CSC
Shri MarkFernandes	IMC
Shri Paresh Shah	WISA
Sandeep B.Kadam	Liladhar pasoo

Scanned by CamScanner

1. **Points discussed in the previous meeting**

A. Tremendous delay in clearing the import consignments arrived at AIATSL Shed, points of actions required by AIATSL:

In the previous meeting the representative of BCBA raised the following points:

a. After arrival, the packages are getting deposited to shed for clearance late by more than 24 Hrs.

b. Big lot, say where the number of packages are higher in quantity with heavy weight of the consignment are landing part, no intimations are available to importers about this as the EDI systems show the total packages are arrived in one IGM. During physical clearance, it is found by the CB that the goods are arrived in part.

c. While CB takes the delivery of the RMS consignment (for e.g. one package fifty kgs), on post clearance, importer is complaining part receipt of the goods, and later, it is found that package was delivered in part, this is due to mishandling of the pallet which was broken and no re-packing was done when it was broken at Air India warehouse.

d. The procedures followed by the Air India to write the R Number on each package should be changed like MIAL has done. To give R Number to each package is required manpower like loaders, fork lift and duty officer. By following this procedure, the errors are happening by giving wrong R Numbers on the packages or the packages are getting damages (it is carried out under carpet) and no corrective actions takes place.

e. Air India is not providing the facility of the online payment of the warehouse charges for import consignments, the same facilities is comfortably available by the other custodian (MIAL). The members have to stand in the long queue for payment. This is directly affecting the increase in dwell time records.

f. During the rain, there is leakage found at Air India Light Shed needs to cover the roof.

g. Inside the export shed, the loaders are not available for unloading of the packages.

h. Needs more manpower, forklift, exhaust fans, lights, camera in the shed is required.

The representative of AIATSL informed the house that Purchase Order has already been issued to Godrej and Voltas for procurement of 20 Electric Forklifts. 03 New Forklifts have been procured from Voltas and 05 from Godrej on rental basis. Remaining forklifts will be provided within one or two months. They also informed the house that 88 Handymans, 22 Staffs and 18 Operators are recruited in the month of November and December, 2018. There is an improvement of facility in the Shed as compared to its earlier condition. They also insured the house that the difficulties faced by trade w.r.t. Air India Shed will be resolved as early as possible. The Chairman accepted their explanation and stated that the point may be closed for the time being and operations can be reviewed after two month.

[Action: Point Closed]

B. Issuance of Registration Certificate for Consolidator at ACC:

In the previous meeting, the representative of BCBA submitted that the CBs at Air Cargo facing difficulty in obtaining themselves as a "Consolidator", CBs has to visit New Custom House to obtain the registration certificate as a consolidator. They requested that such arrangements should be made at ACC, Mumbai.

Additional Commissioner (Import) informed the house that matter is already taken up with Principal Commissioner of Customs (General), New Custom House, Mumbai Zone-I. He asked the trade representative to wait till reply from the Principal Commissioner of Customs (General), NCH Mumbai.

[Action: Custom]

Scanned by CamScanner

C. Delay in examination of import consignment due to frivolous examination order:

In the previous meeting the representative of BCBA submitted that frivolous examination order are delaying examination of import consignments e.g. verify GATT declaration, verify actual user declaration etc. They requested to give necessary instruction to avoid such kind of examination order.

Commissioner (Import) informed the trade representative that several instructions have already passed to the Assessing Officer in this regard. However, fresh Standing Order is being issued by the Import Commissionerate, ACC, Mumbai. As assured by the Commissioner (Import), Standing Order No. 01/2019 is issued.

(Action: Point Closed)

D. Enhancement of Fee for Entry Passes by MIAL:

In the previous meeting the representative of BCBA submitted that MIAL entry passes were so far being issued to CBs and CB Employees at Rs.30/- per pass with a validity of 5 years. Without prior notice to the trade, MIAL has increased the entry pass fee from Rs.30/-to Rs.625/-. Further, any unilateral increase of charges without prior notice to trade is unacceptable. They suggested that providing of entry pass is the sovereign function to observe security arrangement. Trade should not be made to pay for entry passes. It is inherent function of state to provide security.

The representative of MIAL informed the house that point regarding enhancement of fee for entry passes was discussed with the trade members in the last CAFAC meeting and it is amicably decided to reduce the fee for entry passes and circular in this regard has been issued.

(Action: Point Closed)

2. <u>New point taken for discussion in the meeting</u>

A. CCR Instruction and examination order in the Import Bill of Entry regarding valuation is not in conformity with law and leading to delay in clearances considerably:

In the instant meeting the representative of BCBA submitted that new CCR Instructions are conveying cases of over valuation based on the previous imports. Each transaction value is different in terms of Customs Valuation Rules, 2007 and without following the process of law laid down under Customs Valuation Rules, 2007, under valuation cannot be directly termed in the Bill of Entry. This is leading to delay in clearance of import consignment and increase in dwell time.

The representative of BCBA informed the house that JNCH agreed to refer the matter to RMD. The matter is discussed in the house with the representative of trades and BCBA informed the house that they will take up the matter with RMD and Board.

(Action: Point Closed)

B. Pendency in Assessment of Bills of Entry in various groups:

In the instant meeting the representative of BCBA submitted that pendency in assessment of import Bills of Entry be cleared before end of the day in order to ensure improved dwell time and improvement in the index of Ease of Doing Business.

Commissioner (Import) informed the trade representative that they have already passed instructions to the Assessing Officers in this regard.

(Action: Point Closed)

Scanned by CamScanner

C. Touch Screen not functional:

In the instant meeting the representative of BCBA submitted that three touch screens/keyboard installed in Air Cargo Complex are not working from last three weeks and requested to make them in working conditions so that CBs can check the status of their import/export consignments with quick access to touch screen/keyboard.

Commissioner (Import) informed the house the matter will be taken up with the Commissioner (General), ACC Mumbai for procurement of hardware for the touch screens installed at ACC Mumbai. He also informed the trade representative that due to ending of the financial year, procurement of the same is depending on the budget available in this head.

The representative of trade also informed the house that due to poor internet connectivity they could not access ICEGATE website at ACC Mumbai and requested MIAL to provide the wifi password to access the ICEGATE website only, this will resolve the difficulty faced by the trade completely.

(Action: Customs/MIAL)

D. Discontinuation of DMS charges of NEWGEN SOFTWARE SERVICES TECHNOLOGIES LTD. (PN No.09/2016 dated 16.06.2016) after introduction of the E-Sanchit Programme:

In the instant meeting the representative of BCBA submitted that various Custom Brokers are requesting to discontinue DMS charges after compulsory uploading of documents under E-Sanchit. The point was raised in the PTFC meeting held on 24.04.2018. The review is pending from the Customs on the ground that many members are not submitting the proper documents under E-Sanchit. BCBA has issued the circular vide reference no. BCBA/CIR/507/2018 dated 04.07.2018 among the Customs Broker and advised them to upload the proper documents under the E-Sanchit. If the documents are found missing under the E-Sanchit, there is a facility to upload the missed out documents after filing of Bills of Entry. The association is requested to discontinue the DMS Charges at ACC, Mumbai like JNCH vide PN No. 104/2018.

Additional Commissioner (import) informed the house that we will make a review on the matter.

(Action: Customs)

E. Time Bound schedule required for creation of Import Shed for General Cargo at ACC Mumbai:

In the instant meeting the representative of BCBA submitted that with a view to handle higher volumes at ACC Mumbai it is suggested that MIAL should provide facility for handling general import and export cargo with a bigger warehouse and truck docking area to the trade on urgent basis.

The representative of MIAL informed the house that they are already working on this and they will refer the matter to Admin. The representative of trade informed the house that they are demanding an Import Shed for General Cargo at ACC since many years. The Commissioner (Import) asked the MIAL to take concrete steps to complete the demand of the trade.

(Action: MIAL)

F. Timely intimation of damage cargo at the time of forwarding itself:

In the instant meeting the representative of BCBA submitted that intimation of damaged packages of import consignments are known only when the warehouse charges are paid online. The procedure of insurance survey is getting delayed by one or two day's minimum in absence of damaged notice. The Custodian is requested to display the damaged

Scanned by CamScanner

notice on the screen, so that while making online transaction with custodian, the members are aware to hold the survey of that particular damaged consignment quickly.

The representative of MIAL informed the house that they are already serving the detailed segregated information of Cargo on GMAX website. Commissioner (Import) asked the representative of trade to check the website and verify whether the information provided by MIAL is complete or not. Accordingly the matter will be discussed in the next PTFC.

(Action: MIAL/Air India)

G. Delay in handling of consignments at AIATSL Shed:

In the instant meeting the representative of BCBA submitted that delay in handling of consignments at Air India Shed is contributing in increase in dwell time of clearance of consignment at ACC Mumbai. There are only 1 or 2 forklift operators for handling of consignments leading to tremendous delay. Trade is made to run Pillar to Post for clearance of consignments through Air India. They make a sincere request to the house for addressing the matter in CCFC meeting also and addressing the same with Ministry of Civil Aviation for suitable improvement. The endeavour of reduction in dwell time is defeated for clearance of consignments in Air India.

Matter already discussed with Point 1(A), the Commissioner (Import) asked the trade representative to wait for some time as the infrastructure is coming up in the Air India Shed. Since the point is similar to Point 1(A), hence the same is closed.

(Action: Point Closed)

H. Import delivery of the big and heavy packages with odd dimension permitted from the normal warehouse gate:

In the instant meeting the representative of BCBA submitted that import delivery of the big and heavy packages with odd dimension are not allowed from the normal warehouse gate. MIAL is asking to collect the deliveries from the CLF Area. The CBs are facing much trouble to collect the delivery because of the congestion on CLF area, many packages and trollies, pallets blocking the way for their vehicle to move around for delivery. Also the CBs are fined for some minor damages to the packages lying on road getting little push from the vehicles arriving for collecting the delivery. MIAL has to provide the delivery from the normal gate and should stop giving delivery from CLF are unless CB is requesting for the same.

The representative of MIAL informed the house that they have issued a Public Notice regarding handling of odd dimension cargo from CLF area and there are certain time lines for the same. MIAL also informed the house that the trade association have not raised any issue in this regard, if trade has certain issues they can discuss the same with them and they will try to resolve it. They also requested the trade to make delivery of cargo in early hour and for the peak hours they should follow the time frame. The Commissioner (Import) asked the representative of MIAL to discuss the matter with the trade association and resolve the issue.

(Action: Point Closed)

I. Air India/AIATSL is not issuing the Cargo Arrival Notice on or before arrival of the import consignments:

In the instant meeting the representative of BCBA submitted that Air India/AIATSL is not issuing the Cargo Arrival Notice on or before arrival of the import consignments, there is a tremendous delay happening when consignment is address to Bank A/c Importer's name. Air India/AIATSL is adamant to accept the request from the CB/Importer when the goods physically arrived but flight is not checked (even after four days of arrival) or location in the shed is not given to the packages. Each and every Airlines are proactive, they are issuing Cargo Arrival

Scanned by CamScanner

Notice on or before arrival to meet the requirements of the Importer to clear their consignment without delay.

The representative of Air India informed the house that earlier Cargo Arrival Notice took some time. But from the last week they have made some improvement and now they are issuing Cargo Arrival Notice on time. The Commissioner (Import) asked the representative of BCBA to check whether the improvement claimed by AIATSL is there or not, accordingly the matter will be discussed in the next PTFC.

(Action: Air India/AIATSL)

बैठक का समापन अध्यक्ष महोदयों को धन्यवाद ज्ञापन के साथ हुआ।

The meeting ended with thanks to the Chairman.

यह स्थायी व्यापार सुविधा कमिटी के अध्यक्ष महोदय आयुक्त महोदय (आयात) और आयुक्त महोदय (निर्यात), अंचल-III के अनुमोदन से निर्गत किया जाता है।

This issues with the approval of the Commissioner of Customs (Import) and Commissioner of Customs (Export), Mumbai Customs Zone-III.

सुखजीत कुमार 16/1/19

(सुखजीत कुमार/Sukhjit Kumar)
अपर आयुक्त सीमाशुल्क (आयात)
Addl. Commissioner of Customs (Import)
हवाई माल संकुल, सहार, मुंबई
Air Cargo Complex, Mumbai

COPY TO:

1. Chief Commissioner of Customs, Zone-III, Mumbai - For kind information, please.
2. Pr. Commissioner / Commissioner of Customs, Import / Export / General, ACC.
3. All Addl./Jt./DC/AC Commissioner of Customs, Import / Export / General, ACC.
4. All members of PTFC meeting (via E-mail)
5. E &T Section/PSO Section ....for circulation in Export/General Commissionerate.
6. EDI Section- For uploading on ACC Website.
7. Office copy.

Scanned by CamScanner